

26NWCV01167 26NWCV01167

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 26NWCV01167 Hearing Date: July 27, 2026 Dept: C

ALTERO, INC. V. GREENField,
et al.

CASE NO.: 26NWCV01167

HEARING: 7/27/26 @ 9:30 AM

#21

TENTATIVE ORDER

Pro Per Defendant ADAM LUJAN GREENFIELD's Motion to Set Aside Default is DENIED.

Moving Party to give NOTICE.

Pro per Defendant ADAM LUJAN GREENFIELD

(Defendant) moves for relief from default pursuant to CCP § 473 subd., (b).

Background

This unlawful detainer complaint was filed on April 2, 2026 and concerns commercial property located at 6026 S. Atlantic Blvd., Maywood, CA 90270 (the "Property"). Plaintiff ALTERO, INC. alleges that on or about March 3, 2026, Plaintiff acquired ownership of the Property by purchasing the commercial building in which the Property is located at a nonjudicial foreclosure sale. The Property is a unit located within a commercial building. (Complaint, ¶ 9.) Defendants ADAM LUJAN GREENFIELD, an individual; MR. C'S BARBER SHOP, a business entity unknown; and

ALL UNKNOWN OCCUPANTS, TENANTS, AND SUBTENANTS are currently in possession of, and are occupying, the Property, or claim a right to possess or occupy the Property, without any right to do so. No occupant of the Property has provided Plaintiff with a copy of any lease or rental agreement. (Id. at ¶ 10.) Defendant ADAM LUJAN GREENFIED is the former foreclosed owner of the Property. (RFJN Ex. 8.)

Defendant's default was entered on May 4, 2026. Default judgment has not been entered.

The Court notes that Plaintiff has filed five other unlawful detainer actions regarding the same building and against the same parties. Plaintiff alleges that Defendant is in unlawful possession of five other units in the building. (Ostayan Decl., ¶ 4.) In each case, Defendant has filed identical motions to set aside default. Case Nos. 26NWCV01166 and 26NWCV01172 are pending in Dept. SE-L. Case No. 26NWCV01177 is pending in Dept. SE-P. In these three cases, Defendant's motions to set aside default have yet to be heard. Case Nos. 26NWCV01169 and 26NWCV01176 are pending in Dept. SE-R. In these two cases, Defendant's motions to set aside default were granted by Judge Gasdia on July 6, 2026.

Plaintiff filed a Notice of Related Case on July 3, 2026 which has not been ruled upon by Dept. SE-L.

Request
for Judicial Notice

Plaintiff's
Request for Judicial Notice is GRANTED.

Legal
Standard

Discretionary
and mandatory relief is available to parties from "judgment, dismissal, order, or other proceeding taken against him or her." (CCP § 473(b).) Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (CCP § 473(b).) Alternatively, mandatory relief is available when "accompanied by an attorney's

sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.” (CCP § 473(b).) Under this statute, an application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (CCP § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-982.)

Discussion

Plaintiff's Request for Entry of Default was entered on May 4, 2026. Defendant filed this Motion to Set Aside Default on May 15, 2026, well within the six months allowed by CCP § 473. Thus, there is a strong public policy in favor of granting Defendant's Motion to Set Aside Default.

Defendant contends that he was under impression and believing in good faith that the attorney that he had hired, Chris Brooks, to represent him in the case had taken the necessary steps to file the Answer or any other pleadings in his defense. To Defendant's detriment the attorney he hired failed to file an answer or any other pleadings in the case, exposing Defendant to default judgment. It was only when Defendant received the Notice of Default that he learned that his attorney had failed to file an answer on his behalf. (Motion, Exh. A-B.)

In opposition, Plaintiff argues that Defendant did not hire Chris Brooks as his attorney, nor has Brooks provided any attorney's affidavit of fault. Instead, Defendant appears to have hired HFCI, LLC, which is not a law firm, per its website, and is not registered with the California Secretary of State. As noted in the signature block of “Chris Brooks Customer Service, HFCI LLC,” Brooks does not purport to be an attorney. (Motion, Ex. B.) Indeed, as shown on the California State Bar Website, the only attorney by that name practicing in California is an attorney named Christopher Lemmel Brooks who is employed at the CA Dept of Tax and Fee Administration in Sacramento.

The Court finds that defendant has failed to demonstrate mistake, inadvertence, or excusable neglect. Defendant asserts he was not aware of the six lawsuits filed against him until after default was entered on May 4, 2026. (Greenfield Decl., ¶ 8.) Yet, he acknowledges service of the summons and complaint for each case on April 17, 2026. (Id. at ¶ 2.) The Court rejects Defendant's assertion that he hired Chris Brooks as an attorney to file an answer. Chris Brooks does not hold himself out as an attorney in his correspondence to Defendant. In the signature block for his email to Defendant on May 4, 2026, Brooks indicates his job title is "client services." (Greenfield Decl., ¶ 3., Ex. A.) In the signature block for another (undated) email, Brooks indicates his job title is "customer service." (Greenfield Decl., ¶ 6., Ex. B.) This Court is aware that Dept. R ruled it was reasonable that Defendant, acting in pro per, believed Brooks or another individual working at HFCI LLC would file a responsive pleading on his behalf. (Case Nos. 26NWCV01169 and 26NWCV01176, 7/6/26 Minute Orders.) This Court is unable to reach the same conclusion. In this Court's view, any belief Defendant may have held that Brooks is an attorney is unreasonable. Even now, after no answer was filed on Defendant's behalf, Defendant still maintains that Brooks is an attorney. (See, Greenfield Decl., ¶ 3 ("I hired Chris Brooks, Esq. to represent me on this matter.") Defendant's claimed ignorance is simply not credible. Because Defendant has not filed an attorney affidavit of fault, relief is discretionary, not mandatory. In the exercise of its discretion, this Court finds that Defendant has failed to demonstrate mistake, inadvertence, or excusable neglect.

Accordingly,
Defendant's Motion to Set Aside Default Judgment is DENIED.